

CRIMINAL LAW — PROFESSOR DEWOLF

SPRING 2026 — FINAL EXAMINATION

Instructions: This exam consists of three parts. You have three (3) hours to complete it. This is a closed-book exam. Write your answers in the blue book provided. For the multiple choice section, indicate your answer by writing the letter of your choice. For the essays, organize your analysis by issue, applying the Model Penal Code unless otherwise specified. Good luck.

PART I: MULTIPLE CHOICE (36 Points — 3 Points Each)

Select the **BEST** answer for each question.

1. Deterrence and Proportionality

Victor, a 19-year-old with no prior record, stole a bicycle worth \$200 from a university bike rack. The jurisdiction has a "three strikes" law that mandates life imprisonment without parole for any felony conviction if the defendant has two prior "serious" felonies. Victor has no prior convictions. The prosecutor, seeking to send a message about campus crime, charges Victor with felony theft (graded as a "serious" felony under the statute) and requests the maximum sentence of 10 years. Which theory of punishment **BEST** supports the prosecutor's sentencing request?

(A) Retribution, because Victor deserves severe punishment for his moral wrongdoing. (B) Specific deterrence, because Victor needs to be taught not to steal again. (C) General deterrence, because punishing Victor severely will discourage others from stealing on campus. (D) Incapacitation, because removing Victor from society will prevent him from committing future thefts. (E) None of the above, because the sentence is grossly disproportionate under the Eighth Amendment.

2. Principle of Legality — Vagueness

City ordinance § 45.6 provides: "It shall be unlawful for any person to loiter in a manner that causes reasonable concern for public safety. 'Loiter' means to remain in a place for an unreasonable period of time." Marcus is arrested for standing on a street corner for 45 minutes while waiting for a friend. He was not blocking traffic, harassing anyone, or engaging in any suspicious activity. The ordinance is challenged as void for vagueness. Which of the following is the **STRONGEST** argument that the ordinance is unconstitutional?

(A) The ordinance fails to give a person of ordinary intelligence fair notice of what conduct is prohibited. (B) The ordinance permits punishment without a voluntary act. (C) The ordinance violates the rule of lenity. (D) The ordinance improperly shifts the burden of proof to the defendant. (E) The ordinance is an ex post facto law.

3. Actus Reus — Voluntary Act

Diana suffers from severe epilepsy. While driving home from work, she has a sudden seizure,

loses consciousness, and her car veers into a pedestrian, killing him. Diana had not had a seizure in three years and had been cleared by her doctor to drive. The jurisdiction defines vehicular homicide as "causing the death of another person while operating a motor vehicle." Diana is charged with vehicular homicide. Which of the following is her BEST defense?

(A) She lacked the mens rea required for the crime. (B) Her conduct was not a voluntary act under MPC § 2.01. (C) The death was not proximately caused by her conduct. (D) She made a reasonable mistake of fact about her medical condition. (E) The seizure was an intervening act that breaks the causal chain.

4. Mens Rea — MPC § 2.02 — Purpose vs. Knowledge

Under the MPC, Angela is charged with "knowingly possessing cocaine with intent to distribute." The prosecution must prove that Angela knew the substance was cocaine. Angela claims she believed the white powder in her bag was baking soda. The jury finds that Angela was 95% certain the powder was cocaine but did not have "knowledge" in the strict sense because she consciously avoided confirming her suspicion. Which of the following is TRUE regarding Angela's culpability for the element that the substance is cocaine?

(A) Angela cannot be convicted because knowledge requires actual awareness, not mere suspicion. (B) Angela can be convicted because willful blindness satisfies the knowledge requirement under the MPC. (C) Angela can be convicted only if the jury finds she acted purposely. (D) Angela can be convicted because the MPC defines knowledge to include being aware of a high probability, unless she actually believes the contrary. (E) Angela cannot be convicted because the MPC requires purpose for all drug offenses.

5. Mistake of Fact

Under the MPC, Larry is charged with "knowingly damaging property of another." Larry removes a bicycle he believes is his own from a bike rack. In fact, the bicycle belongs to his neighbor, who owns an identical model. Larry's belief is honest but unreasonable — he failed to notice his neighbor's distinctive sticker on the frame. Which of the following is TRUE?

(A) Larry has a valid defense because mistake of fact is a defense under the MPC regardless of reasonableness. (B) Larry has a valid defense only if his mistake was reasonable. (C) Larry has no defense because mistake of fact is never a defense to a criminal charge. (D) Larry has a valid defense because his mistake negates the required mens rea of knowledge regarding the "property of another" element. (E) Larry has a valid defense only if he can show he was negligent in making the mistake.

6. Causation — Proximate Cause

Manny stabs Victor in the chest with a knife, inflicting a wound that is 90% likely to be fatal. While Victor is being transported to the hospital in an ambulance, the ambulance is struck by a drunk driver, killing Victor instantly. Medical experts agree Victor would have survived if the ambulance had not been hit. Manny is charged with murder. Which of the following is TRUE regarding causation?

(A) Manny is not the cause in fact of Victor's death because the ambulance crash was an intervening cause. (B) Manny is the cause in fact but not the proximate cause of Victor's death because the ambulance crash was a coincidence that supersedes his liability. (C) Manny is both the cause in fact and proximate cause of Victor's death because the ambulance

crash was a foreseeable risk. (D) Manny is not the cause in fact of Victor's death because the wound was not independently sufficient to cause death. (E) Manny is the proximate cause but not the cause in fact of Victor's death.

7. Homicide — Premeditation and Deliberation

Frank and his wife Ellen have been in a bitter divorce dispute for months. One evening, Frank finds Ellen in bed with her lover, Tom. Frank immediately grabs a fireplace poker and strikes Tom in the head three times, killing him. The entire incident takes less than 10 seconds. Frank is charged with first-degree murder, which requires "premeditation and deliberation." Which of the following is TRUE?

(A) Frank cannot be guilty of first-degree murder because the killing occurred in a sudden heat of passion. (B) Frank cannot be guilty of first-degree murder because the short time frame precludes premeditation and deliberation as a matter of law. (C) Frank can be guilty of first-degree murder if the jury finds that he formed the intent to kill and reflected on it, even if only for a few seconds. (D) Frank can be guilty of first-degree murder only if the jury finds that he planned the killing in advance. (E) Frank cannot be guilty of first-degree murder because he lacked malice aforethought.

8. Homicide — Felony Murder

Bob and Carl agree to rob a convenience store. During the robbery, the store owner pulls a gun. Carl, panicking, shoots and kills the owner. Bob was in the back of the store and did not know Carl had a gun. Bob is charged with felony murder for the death of the store owner. Under the common law felony murder rule, which of the following is TRUE?

(A) Bob is not liable because he did not personally cause the death. (B) Bob is not liable because the killing was not a foreseeable consequence of the robbery. (C) Bob is liable because the death occurred during the commission of a felony. (D) Bob is not liable because he lacked the mens rea for murder. (E) Bob is liable only if the jury finds he acted with reckless indifference to human life.

9. Inchoate Crimes — Attempt — MPC "Substantial Step"

Pam decides to kill her husband for his life insurance money. She buys a gun, researches how to commit the perfect murder online, drives to his office parking lot, and waits with the loaded gun in her car. After waiting for 30 minutes, she changes her mind and drives home. She is arrested the next day. Under the MPC, which of the following BEST describes whether Pam is guilty of attempted murder?

(A) Pam is not guilty because she voluntarily abandoned her plan. (B) Pam is not guilty because she did not commit an act that was "strongly corroborative" of her criminal purpose. (C) Pam is guilty because she took a substantial step toward killing her husband that strongly corroborates her criminal purpose. (D) Pam is guilty only if she came "dangerously close" to completing the crime. (E) Pam is not guilty because she did not actually fire the gun.

10. Inchoate Crimes — Conspiracy — Unilateral Approach

Under the MPC, Alice agrees with Bob to rob a bank. Unknown to Alice, Bob is an undercover police officer who never intended to commit the robbery. Alice takes substantial

steps toward planning the robbery, including casing the bank and acquiring a getaway car. Which of the following is TRUE regarding Alice's liability for conspiracy?

(A) Alice cannot be convicted of conspiracy because there was no genuine agreement between two or more persons. (B) Alice can be convicted of conspiracy because the MPC adopts a unilateral approach to conspiracy. (C) Alice can be convicted of conspiracy only if Bob actually agreed to commit the crime. (D) Alice can be convicted of conspiracy only if she and Bob committed an overt act. (E) Alice cannot be convicted of conspiracy because the object of the conspiracy is impossible.

11. Accomplice Liability — Mens Rea

Diane knows that her friend Eric is planning to break into a warehouse to steal electronics. Diane lends Eric her truck so he can transport the stolen goods. Diane does not want the burglary to succeed, but she lends the truck anyway because Eric is her friend and she feels sorry for him. Eric successfully burglarizes the warehouse and loads the electronics into Diane's truck. Under the MPC, which of the following is TRUE regarding Diane's liability as an accomplice to burglary?

(A) Diane is not an accomplice because she did not have the purpose of facilitating the burglary. (B) Diane is an accomplice because she knew her conduct would facilitate the burglary. (C) Diane is an accomplice because she provided substantial assistance to Eric. (D) Diane is not an accomplice because she did not participate in the actual breaking and entering. (E) Diane is an accomplice only if she benefited from the burglary.

12. Defenses — Insanity — MPC Substantial Capacity Test

Greg has been diagnosed with paranoid schizophrenia. During a psychotic episode, Greg believes that his neighbor is an alien who is planning to destroy the world. Greg kills the neighbor, believing it is the only way to save humanity. Greg knew that killing is illegal and morally wrong, but he believed his actions were necessary to prevent a greater catastrophe. Under the MPC's substantial capacity test for insanity, which of the following is TRUE?

(A) Greg is not insane because he knew his conduct was illegal. (B) Greg is insane because he lacked substantial capacity to appreciate the wrongfulness of his conduct. (C) Greg is insane only if he also lacked substantial capacity to conform his conduct to the law. (D) Greg is not insane because he was capable of forming the intent to kill. (E) Greg is insane only if a psychiatrist testifies that he could not control his conduct.

PART II: ESSAY QUESTIONS (64 Points)

ESSAY QUESTION 1 (32 Points) — Homicide, Accomplice Liability, Defenses

FACT PATTERN:

The Midnight Break-In

Victor and Maya are roommates who despise each other. Victor has repeatedly threatened to "get rid of" Maya. On June 1, Victor tells his friend Carlos, "I'm going to kill Maya tonight. I need your help." Carlos, who dislikes Maya but does not want anyone to die, agrees to help

only because he fears Victor will harm him if he refuses. Carlos agrees to drive the getaway car.

That night, Victor and Carlos drive to Maya's apartment. Victor enters through an unlocked window while Carlos waits in the car, engine running. Victor finds Maya sleeping. He takes a pillow and presses it over her face. Maya struggles but eventually stops moving. Victor, believing Maya is dead, flees to the car, and Carlos drives them away.

Unbeknownst to Victor, Maya did not die. She was rendered unconscious but revived minutes later. However, while Maya was unconscious, a fire started in the kitchen due to faulty wiring. Maya, disoriented from the attack, inhales toxic smoke and dies from smoke inhalation. Medical experts confirm that Maya would have survived the fire if she had been conscious and able to escape.

Victor is arrested and charged with:

1. Murder of Maya
2. Attempted murder of Maya (alternative charge)

Carlos is charged with: 3. Murder of Maya as an accomplice

ANALYZE the following under the MODEL PENAL CODE:

- (A) Victor's liability for murder. Consider all theories of homicide, including causation issues.
- (B) Victor's liability for attempted murder.
- (C) Carlos's liability as an accomplice to murder.
- (D) Any defenses that Victor or Carlos might raise.
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ESSAY QUESTION 2 (32 Points) — Inchoate Crimes, Mens Rea, Mistake, Legality

FACT PATTERN:

The Undercover Operation

Detective Jones, working undercover, approaches Tom at a bar and says, "I'm looking for someone to help me steal a valuable painting from the City Museum. The security system is old, and I know a way in. Are you interested?" Tom, who is unemployed and desperate for money, agrees.

Over the next week, Tom and "Jones" (whom Tom knows only as "Jake") meet three times. Tom:

- Draws a map of the museum's floor plan based on public information
- Purchases bolt cutters and rope
- Cuts a hole in the fence behind the museum (which is not part of the security system)
- Agrees to meet "Jake" at the museum at midnight on Friday

Unknown to Tom, "Jake" is a police officer, and the entire "plan" is a sting operation. There is no actual plan to steal the painting. The museum's security system is state-of-the-art and would have prevented any theft.

On Thursday night, Tom has a change of heart. He calls "Jake" and says, "I can't go through with this. I'm out." Tom never goes to the museum on Friday.

Tom is arrested and charged with:

1. Conspiracy to commit theft
2. Attempted theft

ANALYZE the following under the MODEL PENAL CODE:

(A) Tom's liability for conspiracy to commit theft. Address the unilateral approach, the agreement requirement, and any defense of abandonment.

(B) Tom's liability for attempted theft. Address the substantial step test, factual impossibility, and any defense of abandonment.

(C) Assume for this subpart only that the jurisdiction follows the COMMON LAW rather than the MPC. How, if at all, would your analysis of Tom's liability for conspiracy and attempt differ?

PART III: MPC vs. COMMON LAW COMPARISON (20 Points)

Instructions: For each of the following five (5) doctrines, identify ONE key difference between the Model Penal Code approach and the traditional Common Law approach. Provide a brief explanation and a specific example illustrating the difference.

1. Mens Rea (Culpability Requirements)
 2. Attempt (Inchoate Crimes)
 3. Conspiracy
 4. Felony Murder
 5. Insanity Defense
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END OF EXAMINATION

DEWOLF MODEL ANSWERS -- SET 1

ESSAY 1: POLICY ANALYSIS — MPC § 2.02 AND THE PRINCIPLE OF LEGALITY

I. Introduction: The Central Tension

The Model Penal Code's § 2.02 represents a monumental, albeit imperfect, attempt to rationalize the common law's notoriously inscrutable mens rea taxonomy. The drafters' ambition was to supplant a chaotic lexicon of "malice aforethought," "willfully," and "maliciously" with a hierarchical, four-tiered scheme of purpose, knowledge, recklessness,

and negligence. This endeavor is fundamentally animated by the *Principle of Legality*—the maxim that a person may not be punished for conduct unless the law provides “fair warning” of the proscribed behavior and the requisite mental state. However, a palpable tension emerges when the MPC’s own default provisions, particularly § 2.02(3) and (4), are subjected to rigorous scrutiny. The question is whether the Code’s elegant structure occasionally sacrifices doctrinal coherence and fair warning for the sake of administrative convenience, thereby undermining the very principle it purports to champion.

II. The MPC’s Architecture: A Triumph of Taxonomy

The genius of § 2.02 lies in its hierarchical structure. Section 2.02(1) establishes the foundational rule: “a person is not guilty of an offense unless he acted purposely, knowingly, recklessly or negligently, as the law may require, with respect to each material element of the offense.” This is a direct and powerful instantiation of the Principle of Legality. It commands the legislature to be precise. A statute that is silent on *mens rea* is, under this framework, a defective statute.

Section 2.02(3) provides the default rule: “When the law defining an offense does not prescribe any culpability requirement... culpability is established if a person acts purposely, knowingly or recklessly with respect thereto.” This is the *default to recklessness* rule. The drafters reasoned that requiring the prosecution to prove at least recklessness provides a baseline of moral blameworthiness, filtering out purely accidental or merely negligent conduct. This serves the retributive goal of punishment: we do not deserve punishment for what we did not foresee as a substantial and unjustifiable risk.

Section 2.02(4) is the “same level of culpability” rule for material elements. It provides that when a statute prescribes a culpability level for one material element, that same level applies to all material elements “unless a contrary purpose plainly appears.” This prevents the absurdity of a statute requiring “knowingly” for the conduct element but leaving the attendant circumstances or result elements to strict liability.

III. The Doctrinal Incoherence: The Problem of “Wilful Blindness” and the Default to Recklessness

Despite its elegance, the MPC’s system is not without its critics. A significant point of doctrinal incoherence arises from the Code’s treatment of “wilful blindness.” The common law often equated a defendant’s deliberate ignorance of a fact with knowledge. The MPC, however, formally rejects this equation. Under § 2.02(7), “knowledge” is established if a person “is aware of a high probability of [the fact’s] existence, unless he actually believes that it does not exist.” This is a powerful tool, but it creates a paradox. A defendant who deliberately avoids confirming a high-probability fact is treated as acting *knowingly*, not *recklessly*. This collapses the distinction between the second and third tiers of the hierarchy.

Consider a drug courier who is paid a suspiciously large sum to drive a car across the border, who is told not to look in the trunk, and who deliberately avoids doing so. Under § 2.02(7), a jury may infer that he is “aware of a high probability” of the drugs’ existence. He is thus guilty of “knowingly” possessing a controlled substance. But is this truly “knowledge” in the philosophical sense? He does not *know*; he *suspects*. The MPC’s solution is a pragmatic one, designed to prevent a loophole for the deliberately obtuse. However, it creates a palpable tension with the Principle of Legality. The line between “aware of a high probability” (knowledge) and “consciously disregarding a substantial and unjustifiable risk” (recklessness) is a matter of degree, not of kind. A defendant may be unable to predict which side of this line his conduct will fall, undermining fair warning.

Furthermore, the default to recklessness in § 2.02(3) has been criticized for being too lenient in some contexts and too harsh in others. For retributivists, the default is defensible: negligence, which involves a failure to perceive a risk, is less blameworthy than conscious risk-taking. For utilitarians, however, the default may be suboptimal. In regulatory offenses (e.g., environmental law, food safety), the need for deterrence and the difficulty of proving subjective awareness may justify a negligence standard or even strict liability. The MPC's rigid hierarchy, while principled, may be ill-suited to the diverse landscape of criminal law.

IV. The Morality of Punishment: Retribution vs. Utility in the MPC's Framework

The MPC's mens rea scheme is a battleground for the competing philosophies of punishment. The hierarchical structure, with its emphasis on subjective awareness (purpose, knowledge, recklessness), is deeply retributive. It insists that punishment is only just when the actor's subjective mental state reflects a culpable choice. The "default to recklessness" rule is a clear retributive floor: we do not deserve punishment for accidents.

However, the utilitarian impulse is present in the Code's treatment of negligence. Section 2.02(2)(d) defines negligence as a failure to perceive a risk that a "reasonable person" would perceive. This is an objective standard. A utilitarian would argue that punishing negligence is justified because it creates an incentive for people to be more careful, thereby reducing the overall social cost of accidents. A retributivist would counter that punishing someone for a failure they did not consciously choose is a form of strict liability, which violates the core principle that punishment must be deserved.

V. Conclusion: A Necessary but Imperfect Compromise

The MPC's § 2.02 is a masterful attempt to bring order to a chaotic area of law. Its hierarchical structure and default rules are a powerful expression of the Principle of Legality, demanding legislative precision and providing fair warning. However, the Code is not a perfect machine. Doctrinal incoherence arises from the treatment of wilful blindness, and the philosophical tension between retribution and utility is never fully resolved. The MPC represents a necessary compromise: a system that prioritizes fair warning and subjective culpability, but which must occasionally bend to the pragmatic demands of adjudication and deterrence. It is a monument to the idea that the law must be both principled and workable.

ESSAY 2: FACT PATTERN ANALYSIS — HOMICIDE/ACCOMPLICE (PARK SHOOTING)

GOAL

The goal of this analysis is to determine the potential criminal liability of Alpha and Beta for the death of Victor, a bystander killed by a stray bullet during an altercation in a park. The analysis will focus on the doctrines of homicide and accomplice liability, applying the Model Penal Code framework and contrasting it with common law approaches. The central issues are the mens rea of the shooter (Alpha) and the derivative liability of the encourager (Beta).

ANALYSIS

I. Alpha's Liability for Victor's Death

The primary question is Alpha's culpability for the homicide of Victor. The actus reus is clear: Alpha fired a gun, and that bullet caused Victor's death. The critical issue is mens rea.

- **A. Intent to Kill (Purposeful/Purposeful Murder).** Some courts would analyze this as a classic case of “transferred intent.” Under this common law doctrine, if Alpha intended to kill Delta, but his bullet struck and killed Victor instead, the law “transfers” Alpha’s intent from the intended victim (Delta) to the actual victim (Victor). This would make Alpha guilty of murder. The MPC, however, does not formally adopt the “transferred intent” label. Instead, under § 2.03(2)(a), a person is guilty of a homicide if he “purposely... causes a particular result, it is not a defense that... he did not intend the particular result that occurred, if the actual result differs only in that a different person... was harmed.” Thus, under both the common law and the MPC, Alpha’s intent to kill Delta satisfies the mens rea for the murder of Victor. This is a straightforward application of the Principle of Legality: Alpha had fair warning that intentionally firing a gun at someone is a deadly act, and he cannot complain that he killed the wrong person.
- **B. Depraved Heart Murder (Recklessness Manifesting Extreme Indifference).** A second, and perhaps more analytically sound, path is to analyze Alpha’s conduct as “depraved heart” murder. Under MPC § 210.2(1)(b), a homicide is murder if it is “committed recklessly under circumstances manifesting extreme indifference to the value of human life.” The fact pattern states the park was “crowded.” Firing a gun into a crowd—or even in the direction of a crowd—is the paradigmatic example of conduct that manifests extreme indifference. Under this theory, the prosecution need not prove that Alpha intended to kill *anyone*. It need only prove that he consciously disregarded a substantial and unjustifiable risk that death would occur (§ 2.02(2)(c)), and that the risk was of such a nature that his conduct demonstrates an extreme indifference to the value of human life. This theory is more robust because it does not rely on the fictional “transfer” of intent. It directly addresses the moral blameworthiness of creating a lethal risk in a public space.
- **C. Voluntary Manslaughter (Extreme Emotional Disturbance).** The fact pattern notes that Alpha was “enraged.” This raises the possibility of a partial defense, reducing murder to manslaughter. Under the common law, this is the “heat of passion” doctrine. Under MPC § 210.3(1)(b), a homicide that would otherwise be murder is reduced to manslaughter if it is “committed under the influence of extreme mental or emotional disturbance for which there is reasonable explanation or excuse.” The key is whether a reasonable person in Alpha’s situation might have been similarly disturbed. An argument that his girlfriend was “insulted” is unlikely to meet this standard. Courts are generally reluctant to find that mere verbal provocation constitutes a reasonable explanation for a shooting. The “extreme emotional disturbance” defense is typically reserved for cases of sudden, overwhelming events, such as discovering a spouse in flagrante delicto. A verbal insult, without more, is unlikely to suffice. Therefore, the prosecution would likely argue that Alpha’s rage was not a reasonable response, and thus the homicide remains murder.

II. Beta’s Liability as an Accomplice

The second critical issue is Beta’s liability. Beta did not fire the gun, but he “yelled encouragement.” Under the doctrine of accomplice liability, a person is legally responsible for the conduct of another if he aids or encourages that conduct with the *intent* to promote or facilitate the commission of the offense.

- **A. Actus Reus: Aid or Encourage.** Beta’s act of yelling encouragement clearly satisfies the actus reus of accomplice liability. His words were a form of psychological encouragement, reinforcing Alpha’s decision to shoot. This is a classic form of “aiding and abetting.”

- **B. Mens Rea: Intent to Promote or Facilitate.** This is the more difficult element. Under MPC § 2.06(3)(a), an accomplice must act “with the purpose of promoting or facilitating the commission of the offense.” The key word is *purpose*. Beta must have intended that Alpha commit the *offense*. The question is: what offense did Beta intend to promote? Did he intend to promote an assault? A murder? A reckless shooting?
 - **Path A: Liability for Murder.** If the prosecution can prove that Beta intended for Alpha to kill Delta (i.e., to commit murder), then Beta is liable for the murder of Victor under the same “transferred intent” or “different person” principles that apply to Alpha. This is a difficult burden. The fact pattern only states Beta yelled encouragement. It does not state he yelled “Kill him!” or “Shoot him in the head!” The prosecution would need to infer from the context that Beta’s encouragement was meant to incite a lethal act.
 - **Path B: Liability for a Lesser Offense.** A more plausible argument is that Beta intended to promote a simple assault or a reckless endangerment. If Beta only intended for Alpha to scare Delta or to fire a warning shot, then Beta’s purpose was not to promote a homicide. Under the MPC’s strict “purpose” requirement, Beta would not be liable for the murder. He could, however, be liable for a lesser homicide (e.g., manslaughter) if his own conduct was reckless, or for the underlying assault. This is a critical distinction. The Principle of Legality demands that Beta’s liability be tied to his own culpable mental state, not simply to the tragic result.
 - **Path C: The “Natural and Probable Consequences” Doctrine (Common Law).** Some common law jurisdictions reject the MPC’s strict purpose requirement. Under the “natural and probable consequences” doctrine, an accomplice is liable for any crime that is the natural and probable consequence of the crime he intended to promote. Under this doctrine, if Beta intended to promote an assault, and a murder was the natural and probable consequence of that assault (especially in a crowded park with a gun), then Beta could be liable for the murder. This doctrine is in palpable tension with the Principle of Legality, as it extends Beta’s liability far beyond his subjective intent. The MPC explicitly rejects this doctrine, requiring that the accomplice’s purpose be tied to the specific offense charged.

CONCLUSION

Alpha is almost certainly guilty of murder for the death of Victor. The most analytically sound theory is that his conduct in firing a gun in a crowded park constitutes reckless conduct manifesting extreme indifference to human life (depraved heart murder). The “transferred intent” theory provides an alternative, albeit more fictional, path to the same result. The extreme emotional disturbance defense is unlikely to succeed.

Beta’s liability is more complex. Under the MPC, the prosecution must prove that Beta acted with the *purpose* of promoting a homicide. If the evidence only shows he intended to promote an assault, he is not liable for murder. Under the common law’s “natural and probable consequences” doctrine, his liability could be broader. The resolution of this case thus turns on the jurisdiction’s choice between the MPC’s strict, subjectivist approach and the common law’s more expansive, objectivist approach. The former better serves the Principle of Legality; the latter may better serve the utilitarian goal of deterring those who encourage dangerous conduct.